

26STCV10329 26STCV10329

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Case Number: 26STCV10329 Hearing Date: August 31, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

DUSTIN TSU, et al.,

Plaintiffs,

vs.

DARRYL

LYNN GREEN, as an individual and as Trustee of the DARRYL LYNN GREEN TTEE

TRUST Dated November 17, 2025, et

al.,

Defendants.

Case No.:

26STCV10329

Hearing Date:

August 31, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFFS

DUSTIN TSU AND CARISSA TSU'S MOTION FOR ORDER AUTHORIZING ALTERNATIVE SERVICE
OF SUMMONS BY ELECTRONIC MAIL PURSUANT TO C.C.P. § 413.30

Background

Plaintiffs Dustin Tsu and Carissa Tsu (jointly, "Plaintiffs") filed this action on March 30, 2026 against Defendant Darryl Lynn Green, as an individual and as Trustee of the Darryl Lynn Green TTEE Trust Dated November 17, 2025 ("Defendant"), alleging four causes of action for (1) quiet title, (2) cancellation of written instruments, (3) slander of title, and (4) declaratory relief.

Plaintiffs now move for an order authorizing alternative service of the summons by electronic mail on Defendant. Defendant did not file an opposition.

Discussion

Plaintiffs move

for an order authorizing alternative service, pursuant to Code of Civil Procedure section 413.30, subdivision (a)(1), which states that "[i]f no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." Additionally, "[a] plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." (Code Civ. Proc., § 413.30, subd. (a)(2).)

Plaintiffs

include a declaration from their counsel, who attests that “[o]n March 30, 2026, Plaintiffs, through counsel, filed this action against Defendant DARRYL LYNN GREEN, individually and as Trustee of the DARRYL LYNN GREEN TRUST dated November 17, 2025 (hereinafter as ‘Defendant’), arising from Defendant’s fraudulent and unauthorized recordation of written instruments affecting title to the real property commonly known as 3935, 3935 1/2, 3937, 3937 1/2 La Salle Avenue, Los Angeles, CA 90062 (hereinafter as the ‘Subject Property’).” (Chou Decl., ¶ 2.) Plaintiffs’ counsel explains that “[a]fter this action was filed, Plaintiffs attempted to serve Defendant at the Subject Property, specifically 3937 La Salle Avenue, Los Angeles, CA 90062, which is the property at issue in this action and the address where Defendant resides.” (Chou Decl., ¶ 3.) However, “[f]rom April 20, 2026, to May 11, 2026, service was attempted at the Subject Property on nine (9) separate occasions. Even after multiple attempts, Defendant could not be personally served or served by substituted service.” (Chou Decl., ¶ 4; Ex. A.) Plaintiffs’ counsel also attests that “[f]rom April 12, 2026, to April 15, 2026, service was also attempted at 3935 La Salle Avenue, Los Angeles, CA 90062. However, this address is occupied by an unrelated tenant and is not Defendant’s residence. On April 15, 2026, the occupant of 3935 La Salle Avenue, Los Angeles, CA 90062 advised the process server that Defendant resides at 3937 La Salle Avenue, Los Angeles, CA 90062.” (Chou Decl., ¶ 5.) The attached exhibit in support demonstrates that service was attempted a total of eleven times, with the latter nine times at the “3937” address, and the first two attempts at “3935.” (Chou Decl., Ex. A.) Additionally, after the second attempt, the process server’s declaration of reasonable diligence states that “[t]he address given is not valid for subject. Per an African American who stated that the subject lives at 3937 La Salle ave [sic] Los Angeles, CA 9006.” (Ibid.)

Plaintiffs’

counsel further attests that “[t]hereafter, my office investigated other known addresses associated with Defendant. Upon review of the recorded Grant Deed, Lease Agreement, Memorandum of Lease and a separate probate action entitled In re DARRYL LYNN GREEN TTEE TRUST, Case No. 26STPB01572 (hereinafter the ‘Probate Action’), Plaintiffs identified P.O. Box 470398, Los Angeles, CA 90047, as another address related to Defendant.” (Chou Decl., ¶ 6.) Plaintiffs’ counsel explains that “[t]he same address was also located through an internet search and listed in a Fictitious Business Name Statement published in the Downey Patriot, File No. 2025261605, identifying ‘DARRYL LYNN GREEN TTEE.’” (Chou Decl., ¶ 7; Ex. B.) Page 7 of the Downey

Patriot displays this P.O. Box address. (Chou Decl., Ex. B, p. 7.)

Plaintiffs'

counsel attests that "[b]ecause the listed address, P.O. Box 470398, Los Angeles, California 90047, is a United States Postal Service post office box, it does not provide a physical location where Defendant may be personally served, nor does it identify a dwelling house, usual place of abode, usual place of business, or usual mailing address where substituted service may be completed pursuant to California Code of Civil

Procedure section 415.20(b)." (Chou Decl., ¶ 8.) Plaintiffs'

counsel provides "[a] true and correct copy of the Not Found or Non-Service Return dated May 22, 2026, regarding service of the United States Postal Office" to support her statement. (Chou Decl., Ex. C.)

Accordingly,

Plaintiffs' counsel explains that "[d]espite Plaintiffs' diligent efforts, Plaintiffs have been unable to locate any additional physical address where Defendant may be personally served or where substituted service may be properly completed." (Chou Decl., ¶ 9.) Plaintiffs' counsel states that "[o]n May 8, 2026, Defendant emailed our office, providing two (2) electronic mail addresses associated with Defendant, specifically and ." (Chou Decl., ¶ 10; Ex. D.) "Based on the foregoing, Plaintiffs now seek an order authorizing alternative service of the Summons and Complaint on Defendant by electronic mail and/or by such other method as the Court deems reasonably calculated to give Defendant actual notice of this action." (Chou Decl., ¶ 11.)

Plaintiffs

assert that "[o]n or about May 26, 2026, Plaintiffs filed an Application for Service by Publication, which was denied without prejudice by the Court. The Court stated that if a valid email address for the Defendant is available, Plaintiffs may instead seek a court order authorizing alternative service by electronic mail." (Mot., 5:18-21.)

Pursuant

to the Court's Minute Order from June 2, 2026, the Court expressed that it "has read and considered the Order to Publication, submitted by plaintiff on 5/26/2026 and the order is Denied without prejudice. The summons and complaint should be sent certified return receipt requested to the two addresses identified. Internet searches should be done for possible alternative

addresses. If an email address is available, an order requesting service via email can be requested." (Minute Order 6/2/26.)

Plaintiffs

do not assert, and counsel does not attest, that they attempted to serve the summons and complaint via certified mail with a return receipt. Under Code of Civil Procedure section 415.20, subdivision (a), "[i]n lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office or, if no physical address is known, at the person's usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." However, the Court notes that the declaration of reasonable diligence shows that for each attempt at the "3937" address, there was no answer. (See Chou Decl., Ex. A.) Accordingly, Plaintiffs could not leave the summons and complaint with an individual at the residence.

Based

on the foregoing, the Court finds that Plaintiffs sufficiently support their request for electronic service. Plaintiffs demonstrate reasonable diligence by outlining each attempt that was made, the research they conducted to find a suitable address, and the previous request for publication. The Court grants Plaintiffs' request to serve Defendant electronically, at each of the email addresses provided. Additionally, although Plaintiffs were unable to leave the summons and complaint at the addresses Plaintiffs have for Defendant, the Court orders Plaintiffs to serve Defendant at the two mailing addresses where they previously attempted service of process.

Conclusion

Based on the foregoing, Plaintiffs'

motion for an order authorizing alternative service of the summons by electronic mail on Defendant is GRANTED. Plaintiffs are ordered to serve Defendant at the two email addresses provided, and . Plaintiffs are also ordered to serve Defendant via certified mail, pursuant to the requirements set forth in Code of Civil Procedure section 415.30, at both 3935 La Salle Ave, Los Angeles, CA

90062 and 3937 La Salle Ave, Los Angeles, CA 90062.

Plaintiffs are ordered to give notice of this Order. ۞۞

DATED: August
31, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court